

HOUSE BILL 2141

By Zachary

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 7, Part 1, relative to the confidentiality of
intercollegiate athletics program records.

WHEREAS, this State fosters the growth of its sports and entertainment industry and encourages lawful competition and economic development to further academics, athletics, trade, and commerce in Tennessee; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-7-170(a), is amended by deleting the subsection and substituting instead the following:

(a) Notwithstanding § 10-7-504 or another law to the contrary, records of or relating to an intercollegiate athletics program of a public institution of higher education must be treated as confidential and must not be open for public inspection if:

(1) The records contain information relating to game or player integrity and that is traditionally not revealed publicly due to the public institution of higher education's need to maintain competitiveness in the sport to which the records relate; or

(2) The records are commercial contracts entered into solely in furtherance of an intercollegiate athletics program and contain information that if disclosed to the public, reasonably could be used to affect the economic advantage of a business over its competitors.

SECTION 2. Tennessee Code Annotated, Section 49-7-170(f), is amended by deleting the subsection and substituting instead the following:

(f) This section does not create or afford any private cause of action, liability, or basis for injunctive relief or equitable relief by any private person or entity except for a business asserting that disclosure of information would undermine an economic advantage over its competitor.

SECTION 3. Tennessee Code Annotated, Section 49-7-170, is amended by adding the following as a new subsection (g):

(g) Subdivision (a)(2) is repealed on July 1, 2033.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.